



CHAPTER ix.

An Act to confirm certain Provisional Orders of the Minister of Health relating to Margate and Yeovil. A.D. 1932.
[28th April 1932.]

WHEREAS under the provisions of the Public Health Act 1875 the Minister of Health has made certain provisional orders which need confirmation by Parliament: 38 & 39 Vict. c. 55.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Orders of the Minister of Health which are set out in the schedule to this Act are hereby confirmed and shall have full validity and force. Orders in schedule confirmed.

2. This Act may be cited as the Ministry of Health Provisional Orders Confirmation (Margate and Yeovil) Act 1932. Short title.

[Ch. ix.] *Ministry of Health Provisional* [22 GEO. 5.]
Orders Confirmation (Margate and Yeovil) Act, 1932.

A.D. 1932.

SCHEDULE.

BOROUGH OF MARGATE.

*Margate
Order.*

*Provisional Order for amending the Margate Corporation
Act 1908.*

WHEREAS the borough of Margate is an urban district of which the mayor aldermen and burgesses acting by the council (in this order referred to as "the corporation") are the local authority for the purposes of the Public Health Act 1875;

And whereas the unrepealed provisions of the Margate Corporation Act 1908 are in force in the borough;

And whereas under section 22 of the local Act the corporation are empowered to provide and maintain concert halls pavilions conservatories and other buildings on land belonging to the corporation;

And whereas the corporation have applied to the Minister of Health for the issue of a provisional order to amend the local Act in the manner following:

Now therefore the Minister of Health in pursuance of the powers given to him by section 303 of the Public Health Act 1875 and of all other powers enabling him in that behalf hereby orders as follows:—

Short title
and com-
mencement.

1. This order may be cited as the Margate Order 1932 and shall come into operation on the date of the Act of Parliament confirming it.

Interpre-
tation.

2. In this order—

"the corporation" means the mayor aldermen and burgesses of the borough of Margate acting by the council;
and

"the local Act" means the Margate Corporation Act 1908 as amended by the Margate Corporation Act 1926 and certain confirming Acts.

Amendment
of local Act.

3. For section 22 of the local Act there shall be substituted the following provisions:—

"22.—(1) The corporation may upon the seashore
" or cliffs or any promenade belonging to the corpora-
" tion or upon land acquired by them for the purpose
" erect provide maintain furnish and equip any concert
" halls pavilions conservatories winter gardens band-

[22 GEO. 5.] *Ministry of Health Provisional* [Ch. ix.]
Orders Confirmation (Margate and Yeovil) Act, 1932.

“ stands refuges refreshment assembly or reading rooms
“ baths and other buildings and may charge for admission
“ to such buildings or any of them or in respect of the
“ use thereof or of any part or parts thereof respectively :

A.D. 1932.

—
*Margate
Order.*

“ Provided that nothing in this subsection shall
“ authorise the corporation to erect any such buildings
“ as aforesaid upon any part of the land now belonging
“ or which may hereafter belong to the corporation in
“ front of the Eastern Esplanade and between Sweyn
“ Road and Harold Road and now subject to the cove-
“ nants or provisions contained in an indenture dated the
“ fifteenth February eighteen hundred and seventy-three
“ and made between the British Land Company Limited
“ and Thomas Dalby Reeve.

“ (2) The corporation in or at any such concert halls
“ pavilions conservatories winter gardens assembly rooms
“ or other buildings may provide maintain furnish and
“ equip refreshment rooms and may manage such refresh-
“ ment rooms or may let such refreshment rooms to any
“ person or persons or may agree with any person or
“ persons for the maintenance and management of such
“ refreshment rooms.”

BOROUGH OF YEOVIL.

*Provisional Order partially repealing and amending a
local Act.*

*Yeovil
Order.*

WHEREAS the borough of Yeovil is an urban district of which the mayor aldermen and burgesses acting by the council are the local authority for the purposes of the Public Health Act 1875 and subject to the provisions of the Borough of Yeovil Extension and Improvement Act 1854 the corporation hold certain markets and fairs in the borough ;

And whereas by sections 41 42 and 43 of the local Act the corporation are empowered in connection with their markets and fairs to demand and take stallages rents and tolls not exceeding the sums specified in the schedule to the local Act ;

And whereas by section 74 of the local Act the corporation were empowered to borrow for the purposes of that Act other than for the purchase of gasworks and apparatus sums not exceeding in the whole sixteen thousand pounds ;

And whereas the corporation have applied to the Minister of Health for the issue of a provisional order partially to repeal and amend the local Act in the manner following :

[Ch. ix.] *Ministry of Health Provisional* [22 GEO. 5.]
Orders Confirmation (Margate and Yeovil) Act, 1932.

A.D. 1932.

—
*Yeovil
Order.*

Now therefore the Minister of Health in pursuance of the powers given to him by sections 297 and 303 of the Public Health Act 1875 and of all other powers enabling him in that behalf hereby orders as follows :—

Commence-
ment and
short title.

1. This order may be cited as the Yeovil Order 1932 and shall come into operation on the date of the Act of Parliament confirming it.

Interpreta-
tion. -

2. In this order—

“ the commencement of this order ” means the day on which this order comes into operation ;

“ the borough ” means the borough of Yeovil ;

“ the corporation ” means the mayor aldermen and burgesses of the borough of Yeovil acting by the council ;

“ the local Act ” means the Borough of Yeovil Extension and Improvement Act 1854 ;

“ the markets ” means the markets of the corporation ;

“ the fairs ” means the fairs of the corporation ; and

“ the Minister ” means the Minister of Health.

Stallages
rents and
tolls.

3.—(1) The corporation and their lessees may demand and receive such stallages rents and tolls from persons—

(a) selling or offering or exposing for sale animals in the markets or fairs or marketable commodities in the markets ;

(b) using or occupying shops stalls standings lairage facilities or other conveniences in or connected with the markets or frequenting the markets ;

(c) using any weighing house or place or any weights measures scales or machines in the markets ;

as the corporation may from time to time with the approval of the Minister prescribe in a table of stallages rents and tolls (in this section called a “ table of tolls ”).

(2) One month at least before applying for the Minister's approval to a table of tolls under this section the corporation shall cause notice of their intention so to apply to be exhibited in some conspicuous place in each of the markets and to be advertised in one or more of the newspapers circulating in the borough.

(3) Any such notice shall contain a statement as to the place at which a copy of the table of tolls may during ordinary office hours be inspected and as to the manner in which any objection to the table of tolls should be made.

[22 GEO. 5.] *Ministry of Health Provisional* [Ch. ix.]
Orders Confirmation (Margate and Yeovil) Act, 1932.

(4) Within six months after the commencement of this order the corporation shall submit to the Minister for his approval a table of tolls in pursuance of this section.

A.D. 1932.

—
Yeovil
Order.

(5) Any reference in the local Act or the provisions of the Markets and Fairs Clauses Act 1847 incorporated therewith to the stallages rents and tolls authorised by the local Act shall be construed as a reference to the stallages rents and tolls from time to time authorised under this section and for that purpose charges which are not stallages rents or tolls shall be deemed to be stallages or rents.

4.—(1) In addition to the sums which the corporation were by section 74 of the local Act authorised to borrow the corporation may with the sanction of the Minister borrow on the security of the revenue arising from their markets and fairs and of the general rate fund and general rate of the borough or upon either of such securities such sums as may from time to time be required for the following purposes of the local Act namely—

Additional
borrowing
powers.

(a) altering extending enlarging improving renewing furnishing equipping adapting or rebuilding the public buildings market halls market places and other premises and lands referred to in section 38 of the local Act; and

(b) purchasing any houses buildings or lands which the corporation are authorised to purchase or building any premises which the corporation are authorised to build under section 79 of the local Act.

(2) Any moneys so borrowed shall be repaid within such period not exceeding sixty years from the date of borrowing as the corporation with the sanction of the Minister may determine and that period shall with reference to the repayment of those moneys be the prescribed period for the purposes of the Local Loans Act 1875 and the provisions applied by the subsection next following.

(3) Subject to the provisions of this order the provisions of sections 47 to 49 and sections 51 to 56 of the Yeovil Corporation Act 1898 shall so far as they are applicable apply to any sums so borrowed in the same way as they apply to any sums borrowed in pursuance of that Act.

5.—(1) The Minister may direct any inquiries to be held by his inspectors which he may deem necessary for the purposes of this order and those inspectors shall for the purposes of any inquiry have all such powers as they have for the purposes of inquiries directed by the Minister under the Public Health Act 1875.

Inquiries
and ex-
penses.

[Ch. ix.] *Ministry of Health Provisional* [22 GEO. 5.]
Orders Confirmation (Margate and Yeovil) Act, 1932.

A.D. 1932.

—
*Yeovil
Order.*

(2) Where the Minister causes any such inquiry to be held the costs incurred by him in relation to that inquiry (including such reasonable sum not exceeding five guineas a day as the Minister may determine for the services of any inspector or officer of the Minister engaged in the inquiry) shall be paid by the corporation and the Minister may certify the amount of the costs so incurred and any sum so certified and directed by him to be paid by the corporation shall be a debt due to the Crown from the corporation.

Repeal of
enactments
prescribing
tolls &c.

6. As from the day on which the first table of stallages rents and tolls approved by the Minister under this order comes into operation sections 41 42 and 43 of the local Act shall be repealed.

Printed by EYRE and SPOTTISWOODE LIMITED,

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Acts of Parliament.

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